

Court No. - 40

Case :- WRIT - C No. - 34073 of 2023

Petitioner :- Avion Educational And Charitable Trusts

Respondent :- Purvanchal Vidhut Vitrana Nigam Ltd And Another

Counsel for Petitioner :- Arun Mishra

Counsel for Respondent :- Narendra Kumar Tiwari

Hon'ble Mahesh Chandra Tripathi,J.

Hon'ble Prashant Kumar,J.

1. Heard Shri Arun Mishra, learned counsel for the petitioner and Shri Rakesh Kumar Mishra holding brief of Shri Narendra Kumar Tiwari, learned counsel for respondents-Electricity Department.

2. The supplementary affidavit filed by by learned counsel for the petitioner is taken on record.

3. Present writ petition has been preferred for following relief:-

"(i) Issue a writ, order or direction in the nature of mandamus commanding respondent no.2 to enhance the load of the petitioner from 2KW to 25 KW after complying with the statutory formalities without insisting for releasing fresh connection of 25 KW."

4. This much is contended that the trust of the petitioner was given electricity connection of 2 KW in LMV-4A category on 9.8.2021 for running the Industrial Training Institute (ITI). Once the petitioner applied for recognition from the Directorate General of Training for his ITI College, it was required to get electricity connection of 25 KW. Accordingly, the petitioner requested the respondent no.2 on 4.7.2023 to enhance the load of the petitioner from 2 KW to 25 KW. It is alleged that instead of enhancing the load the respondents have asked the petitioner to disconnect the existing connection and apply afresh for 25 KW load.

5. Alongwith the supplementary affidavit, the petitioner has also annexed the letter/notice dated 3.10.2023 sent by the Sub Divisional Officer, Electricity Distribution Division, Holagarh to the Executive Engineer, Electricity Distribution Division, Fafamu, Prayagraj along with the estimate of Rs.3,10,340/- as Annexure No.SA-1. It is contended that the said estimate is not justified and as such indulgence may be accorded. Lastly it is submitted that against the letter/ notice dated 3.10.2023 the petitioner has made reference under Clause 4.6 (f) of the U.P. Electricity Supply Code, 2005 before respondent no.2 for revision of the estimate and the same may be directed to be decided expeditiously.

6. The relief as has been prayed for is resisted by learned counsel for the respondent-Corporation on the ground that while making the aforesaid communication dated 3.10.2023 it is categorically informed that the place where initial electricity connection was accorded and the place where institution is running, there is distance of more than 400 mtrs. He further submits that even the category of the petitioner is also changed and as such leave may be accorded to the respondent-Corporation to process the application of the petitioner as per the Electricity Supply Code, 2005.

7. Considering the facts and circumstance, we find that said disputed fact cannot be examined under the writ jurisdiction. The said factual aspect can very well be looked into, examined/verified and remedied by the department concerned. The said exercise shall be done preferably within six weeks from the date of production of certified copy of this order.

8. The writ petition stands **disposed of** accordingly.

Order Date :- 7.11.2023

SP/